

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/21/26 TIME: 9:00 A.M. DEPT: G CASE NO: FL0001799

PRESIDING: HON. MATTHEW A. SIROKA

REPORTER:

CLERK: J. CHARIFA

PETITIONER: EVA KLEIN

and

RESPONDENT: DANIEL GEORGE
ERMAN

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD/SPOUSAL SUPPORT;
ATTORNEY’S FEES; ORDER SEALING SETTLEMENT 2) REQUEST FOR ORDER – NEW
TRIAL – SEPARATE TRIAL 3) CASE PROGRESS CONFERENCE

RULING

This matter is before the Court on two April 08, 2026 Requests for Order (RFO) filed by Petitioner Eva Klein (Mother) which collectively sought: a trial on the issue of whether Mother may be deemed a putative spouse, spousal support, attorney fees, sealing of confidential PG&E settlement information, and child support regarding the parties’ child Millicent (DOB: 10/29/2014). The confidential settlement information has been resolved by stipulation of the parties. This order addresses the remaining issues.

Putative Spouse Determination

Mother and Respondent Daniel Erman (Father) both agree the issue of whether Mother is a putative spouse should be bifurcated; they disagree on how the Court should decide it. Mother requests an evidentiary hearing, whereas Father requests the Court resolve the matter at the RFO hearing based on the competing declarations filed by the parties. Wife’s status as a putative spouse under Family Code section 2251 requires a good faith belief in the validity of the marriage. This analysis is a subjective one, focused on the “actual state of mind of the alleged putative spouse” informed by the totality of the circumstances. (*Ceja v. Rudolph & Sletten, Inc.*, (2013) 56 Cal.4th 1113, 1128.) Both parties’ filings demonstrate the Court will have to make credibility determinations as part of this analysis, which cannot be done on paper. Mother’s request for an evidentiary hearing is GRANTED. The parties are to appear ready to set trial dates.

Temporary Spousal Support

Mother asks for pendente lite spousal support prior to the determination of her putative wife status; Father is opposed. The Court can make a preliminary determination of putative spouse status for purposes of *pendente lite* support. (*In re Marriage of Stich* (1985) 169 Cal.App.3d 64.) Because this issue is fundamental to the other issues in the case and must be resolved soon, the Court intends to set trial dates promptly and so declines to award *pendente lite* spousal support at this juncture. However, in the event the Court finds Mother is a putative spouse, the Court reserves jurisdiction to exercise its discretion to award spousal support retroactive to the filing date of the petition. Mother's request is DENIED without prejudice.

Attorney Fees

Mother seeks an award of attorney fees under Family Code section 2030 in the amount of \$55,000 asserting that Father has greater access to assets and generates more income. Father grudgingly accepts that he may have somewhat more access to resources and argues that any fee award should be limited to \$10,000. The Court notes some apparent inconsistencies between Father's most recent income and expense declaration and his schedule of assets and debts he disclosed to Mother in September 2025. In any event, he clearly has substantially more wealth than Mother and therefore some award of attorney fees is appropriate.

Section 2030 "permits the trial court to order payment of attorney fees and costs as between the parties based upon their 'ability to pay' and their 'respective incomes and needs' in order to 'ensure that each party has access to legal representation to preserve all of the party's rights.' " (*In re Marriage of Rosen* (2002) 105 Cal.App.4th 808, 829.) "[T]he purpose of section 2030 is not the redistribution of money from the greater income party to the lesser income party. Its purpose is parity: a fair hearing with two sides equally represented. The idea is that both sides should have the opportunity to retain counsel, not just ... the party with greater financial strength." (*Alan S. v. Superior Court* (2009) 172 Cal.App.4th 238, 251-252.) Mother is not without the means to hire counsel, but unless the parties are able to reach a settlement, the issues presented in this case could result in complex and protracted litigation, and Mother should have equal access to counsel for those proceedings. While Father complains that he should not have to pay for Mother's requested evidentiary hearing on the putative spouse issue, it is Father who contends there is no valid marriage and therefore no quasi marital property or spousal support obligation.

Section 2030 requires the Court to consider "whether an award of attorney's fees and costs...is appropriate, whether there is a disparity in access to funds to retain counsel, and whether one party is able to pay for legal representation of both parties. If the findings demonstrate disparity in access and ability to pay, the court shall make an order awarding attorney's fees and costs." Family Code section 2032 provides: "(a) The court may make an award of attorney's fees and costs under Section 2030 ... where the making of the award, and the amount of the award, are just and reasonable under the relative circumstances of the respective parties. [¶] (b) In determining what is just and reasonable under the relative circumstances, the court shall take into consideration the need for the award to enable each party, to the extent practical, to have sufficient financial resources to present the party's case adequately, taking into consideration, to

the extent relevant, the circumstances of the respective parties described in Section 4320 [the factors for determination of permanent spousal support].... Financial resources are only one factor for the court to consider in determining how to apportion the overall cost of the litigation equitably between the parties under their relative circumstances.”

In essence, the Court must weigh and balance a variety of factors and must consider more than just raw ability to pay. While Father is the party with more resources, Mother is not without means.

The most recent information from both parties indicate they have already incurred around \$35,000-40,000 each in fees and costs. Mother requests \$55,000 to respond to significant discovery Father has propounded, conduct her own discovery and prepare for the evidentiary hearing. Mother’s request is supported by her counsel’s declaration.

The Court awards Mother \$35,000 in attorney fees payable directly to Mother’s current counsel, Kate Rockas, as follows: \$15,000 by August 1, 2026 and the balance by October 1, 2026.

Child Support

The parties each provided numerous potential child support guideline calculations, each using a variety of assumptions and questionable or incomplete data. Two threshold issues are whether Father’s income should be calculated using his base salary or his estimated monthly salary and how to construe the income from the Alhambra settlement and associated expenses. Father asks that if his estimated monthly employment income is used for the calculation, there be a true-up in the event his annual employment income falls below the estimate. The Court accepts that approach for 2026 and uses his estimated W2 income of \$15,709. For 2025, the Court takes the average of his actual W2 income for 2025, which is \$17,001.

As for Father’s settlement income, the Court finds it is income available for support. However, it should be offset by the actual carrying costs of the Alhambra property, since that is the purpose of the income and Father must pay those costs without living there. Father’s income and expense declaration identifies \$2,400 in mortgage costs, \$1,500 in real property tax, \$750 in homeowners’ insurance and \$1,000 in maintenance and repair for a total monthly cost of \$5,650. However, Father provides no corroboration for these numbers, and on its face monthly costs of \$750 for insurance and \$1,000 for maintenance are unreasonable and Court disallows those absent proof of those expenses. The Court will offset the settlement income by \$4,900.

Since the support order includes 2025, and the parties’ income differed from 2025 to 2026, the Court is preparing two calculations, one for each year.

Husband’s 2025 inputs are:

Husband:

1. \$17,001 in W2 income
2. \$879 qualified dividend income
3. \$2,279 non qualified dividend income
4. \$1,296 in 401K contribution
5. \$597 for health care premiums

6. \$3,200 in property taxes
7. \$1,200 in mortgage interest
8. \$2,100 in additional income

His tax status is head of household with 2 exemptions. The parties should alternate, and Mother should claim head of household for 2026.

Mother's calculations are inconsistent with her documents. Her estimates of uninsured medical expenses are uncorroborated and seem high at \$1,200 per month for contact lens and unspecified medications. Her monthly 401K contributions also exceed the maximum amount allowable by law, and her stated interest income does not match the statements from her brokerage account.

Mother's 2025 inputs are

1. \$12,500 in W2 income.
2. \$4,044 investment income a month
3. \$492 in exempt interest dividends
4. \$1,958 in 401K contribution
5. \$1,200 in property taxes
6. \$945 in mortgage interest
7. \$250 in childcare expenses

Her tax status is single with 1 exemption. Mother claims substantial visitation costs, but according to both parents, Millie is with Mother Thursday after school to Monday morning. Mother takes Millie from San Francisco to Mill Valley once per week, and Father takes Millie to San Francisco once per week. Thus, they each bear similar transportation costs for tolls, fuel and mileage. The Court awards no additional transportation costs.

Using these inputs, guideline child support is \$337 plus \$136 in child care, payable from Father to Mother, plus 50% of addons, including: uninsured child medical expenses and extra-curricular activities agreed upon in advance.

Effective April 3, 2025 through December 31, 2025 Huband shall pay to Wife the sum of \$473 per month in child support plus add ons payable half on the first day of each month and half on the 15th day of each month, continuing until further order of this Court, or until the child involved marries, dies, is emancipated, reaches age 19, or reaches age 18 and is not a full-time high school student, whichever occurs first.

2026 inputs

Father's 2026 inputs are:

1. \$15,709 in W2 income
2. \$3,155 in investment income
3. \$2,100 in settlement income
4. \$1,296 401k contribution
5. \$597 health insurance
6. \$3,200 property tax

7. \$1,200 mortgage interest
8. \$200 HSA contribution

Father's tax status is single with one exemption.

Mother's 2026 inputs are:

1. \$11,673 in W2 income.
2. \$4,044 investment income a month
3. \$492 in exempt interest dividends
4. \$2,041 in 401K contribution
5. \$1,200 in property taxes
6. \$945 in mortgage interest
7. \$250 in childcare expenses

Mother's tax status is head of household with two exemptions.

Using these inputs, guideline child support is \$259 plus \$133 in child care, payable from Father to Mother, plus 50% of addons, including: uninsured child medical expenses and extra-curricular activities agreed upon in advance.

Effective January 1, 2026, Huband shall pay to Wife the sum of \$392 per month in child support plus 50% of addons payable half on the first day of each month and half on the 15th day of each month, continuing until further order of this Court, or until the child involved marries, dies, is emancipated, reaches age 19, or reaches age 18 and is not a full-time high school student, whichever occurs first.

Counsel for Mother to prepare the formal Findings and Order After Hearing.

2026

Guideline Summary

Monthly Figures

	Father	Mother	Monthly Figures		Cash Flow	
Fixed Shares			2026		Combined net spendable	28571
Number of children	1	0				
Percent time with NCP	0.00%	49.99%				
Filing status	SINGLE	HH/MLA	Nets (adjusted)		Father	
Number of exemptions		2			Payment cost/benefit	-392
Wages and salary	15709	11673	Father	15353	Net spendable income	14961
Self employed income	0	0	Mother	13218	Federal income tax	2880
Other taxable income	5267	4044	Total	28571	Federal employment tax	1156
TANF CS received	0	0	Support		State income tax	994
Other nontaxable income	200	492	Addons	133	State employment tax	196
New spouse income	0	0	Guideln CS	259	Total taxes	5226
Employee 401-k contribution	1296	2041	Marin SS	-0	Federal filing status	SINGLE
Adjustments to income	0	0	Total	392	State filing status	SINGLE
SS paid prev marriage	0	0			Mother	
CS paid prev marriage	0	0			Payment cost/benefit	392
Health insurance	597	0			Net spendable income	13610
Other medical expenses	0	0			Federal income tax	1409
Property tax expenses	3200	1200			Federal employment tax	893
Ded interest expense	1200	945			State income tax	538
Contribution deduction	0	0			State employment tax	152
Misc tax deductions	0	0			Total taxes	2992
Qualified business income deduction	0	0			Federal filing status	HH/MLA
Required union dues	0	0			State filing status	HH/MLA
Mandatory retirement	0	0				
Hardship deduction	0	0				
Other GDL deductions	0	0				
Child care expenses	0	250				

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Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		50 - 50	0	250	133 Father	259 Father	392 Father
Millicent	2014-10-29	50 - 50	0	250	133 Father	259 Father	392 Father

Superior Court of California
County of Marin